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Case Number: 25STCV22603 Hearing Date: July 16, 2026 Dept: 1

Moving Party: Plaintiff Amanda McGough (Employees First Labor Law P.C.)

Responding Party: Defendants S&J Towing Service, Inc. and William Schlick (O'Hagan Meyer, LLP)

Ruling: Motion to approve Belaire-West notice is GRANTED. No sanctions are awarded.

This is a wage-and-hour putative class action. Plaintiff Amanda McGough (Plaintiff) alleges that she and others were employed by defendants S&J Towing Service, Inc., Jackqueline J. Schlick, William Schlick, and Howard Schlick, during which employment the defendants committed various violations of labor law. Plaintiff moves the Court to approve a Belaire-West notice to the putative class to allow class discovery to continue. Defendants S&J Towing Service, Inc. and William Schlick (Defendants) oppose.

Plaintiff contends that Defendants have been "radio-silent" about the Belaire-West notice, despite Plaintiff's attempts to confer with them about it, and seeks the Court's intervention. Defendants respond that Plaintiff failed to properly meet and confer, that the motion is premature, that no discovery is outstanding to which the Belaire-West process could pertain, and that the proposals by Plaintiff are unjustified.

The record discloses the following. On August 12, 2025, less than two weeks after

the case was filed and shortly after Defendants had been sent a notice and acknowledgment of receipt (so, before formal service), Plaintiff's counsel e-mailed Defendants' counsel to meet and confer with respect to the proposed Belaire-West notice. (LaCour Decl., Ex. D.) Plaintiff's counsel followed up on August 21, 2025, followed by a "final reminder" on August 25, 2025. (Ibid.) That day, Defendants' counsel responded that the Belaire-West procedure "seems premature" as the case was not at issue and "there has been no class-related discovery upon which the Belaire-West process would serve as the informal compromise between parties." (Ibid.)

On January 15, 2026, the parties filed a joint status conference statement which made no mention of Belaire-West and indeed, Plaintiff represented that "Discovery has not yet begun." (January 15, 2026 Joint Status Conference Statement, p. 4.) On March 19, 2026, the Court held the initial status conference and ordered that the parties meet and confer on the Belaire-West notice to be sent to the class, and for Defendants to respond to the complaint. (Court's March 19, 2026 Minute Order.) Defendants filed their answer on April 17, 2026.

On April 15, 2026, nearly a month after the initial status conference, Plaintiff's counsel resumed discussion with Defendants' counsel about the Belaire-West notice. (LaCour Decl., Ex. F.) Defendants' counsel did not respond. (Ibid.) Plaintiff's counsel sent another e-mail on May 7, 2026, three weeks later, following up and stating that "[i]f we do not hear back from Defendants regarding the above documents by COB tomorrow, May 8, 2026, we will move for approval of the Belaire-West notice and seek sanctions." (Ibid.) No response was forthcoming, and this motion followed on May 21, 2026. That same day, Plaintiff propounded her first set of special interrogatories. (Spiewak Decl., ¶ 9.) Defendant's counsel resumed responding to e-mails on or about June 4 (per Christopher Cho's e-mail). (Id., Ex. A, p. 7 ["Hi Lisa, I saw you emailed John on 6/16 and may have missed my 6/4 email below."])

Defendant's counsel attempted to confer with Plaintiff's counsel by phone concerning the discovery before responses were due but did not receive a response. (Id., ¶ 10.) Defendants eventually served

responses objecting on privacy grounds, among others. (Id., ¶ 11; Evans Decl., ¶ 6.) The parties finally connected by phone on

July 1, 2026, during which Defendants' counsel contended that the class definition was overly broad and that Defendants would not proceed with the Belaire-West process unless the class definition was amended. (Evans Decl., ¶ 10.)

Frankly, this motion could have been, and should have been, resolved in an informal discovery conference.

Neither party's conduct is commendable.

Plaintiff's counsel leapt prematurely into the Belaire-West process, demanding cooperation and threatening motion practice before discovery had opened, and indeed, before Defendants had even appeared. Defendants responded that a Belaire-West notice would be premature before any discovery had been served, a position Plaintiff seemingly accepted by abandoning the issue until the initial status conference seven months later and not raising it in the pre-conference statement. Once the Court ordered Belaire-West to proceed, Defendants failed to respond to Plaintiff's counsel for over a month.

While Defendants' original position that Belaire-West requires outstanding discovery was a reasonable one, it is not reasonable to fail to make any response to requests to begin the process after the Court ordered it. Had Defendants reiterated their prior position, the parties could have discussed the matter informally with the Court and resolved it.

The Court agrees with Defendants' initial position that Belaire-West notice requires some outstanding discovery.

After all, the Belaire-West process is intended to balance the privacy rights of nonparty putative class members against the need of plaintiff class representatives to obtain disclosure of their contact information. (See *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, 561.) Where the obligation to disclose that contact information has not arisen (because no discovery has been served), Belaire-West is not required, although it is advisable to prepare the ground by finalizing the terms of a notice before the inevitable request for class contact information is made.

This motion was filed before Plaintiff's discovery was served, and those requests are not really at issue at the moment. In the interest of putting this dispute to rest rather than preserving it for another day, the Court observes the following. Although Defendants did not challenge Plaintiff's class definition and instead answered the complaint, the class definition is indeed very confusing.

It is:

A. Definition of the CLASS
PLAINTIFFS

49. The CLASS consists of: all persons who were employed by Defendants, within the Relevant Time Period as a member of Defendants' CLASS PLAINTIFFS or with any similar title who were non-exempt or misclassified exempt employees and are owed unpaid minimum wages, unpaid overtime wages, penalties for noncompliant and/or missed meal and rest breaks, were provided inaccurate wage statements, and were not timely paid during and/or following their employment with Defendants.

(Complaint, p. 10.)

This class definition is circular both in its self-referential use of "CLASS PLAINTIFFS" and in its inclusion of employees who "are owed unpaid...wages," which makes it difficult to ascertain who is in the class and who is not. Plaintiff's discovery turns on this definition. (See Evans Decl., Ex. 1, p. 5.) This is a legitimate issue. However, the Belaire-West notice can still notify all employees who could potentially be in a class that their contact information might be turned over, and once the parties resolve their differences over the class definition, the process can continue apace. There is no need to hold up the entire process based on a pleadings issue that Defendants failed to raise until now.

Defendants contend that there is "no evidence or basis to support the demand for third-party information regarding employees who worked in entirely different positions and who never worked remotely or from the location Plaintiff has worked." This appears to be a preemptive class certification argument, i.e., that Plaintiff is not similarly situated to any employees who worked in different positions or locations than Plaintiff worked. This is not a valid basis to oppose a Belaire-West procedure as to all employees. Belaire-West is not a final determination of the size or validity of the class; it is a mechanism for resolving privacy objections as to the disclosure of potential, not official or undeniable, class members.

It cannot be conclusively known whether and to what extent Plaintiff is similarly situated to other employees unless Plaintiff can conduct discovery about those employees, which may properly include their contact information. While the Court notes Defendants' position that Plaintiff is not similarly situated, that is not a ground to resist the production of employee contact information.

For the foregoing reasons, the Court is inclined to order the proposed Belaire-West notice be sent to all current and former employees of Defendants for whom Defendants have contact information. The parties ought to split the cost of the notice, which is another standard term that should not require the Court's involvement. The notices should be amended to state that they are not postage-paid, or if any party would prefer them postage-paid, that party should bear the cost for the postage. Defendants have not articulated any real issue with Plaintiff's proposed third-party administrator, CPT Group, but if Defendants have an actual objection to that administrator, the parties should solicit competing bids and choose a mutually-agreeable administrator.

Both parties request sanctions. Neither is entitled to them. Plaintiff filed this motion without having served any discovery to which a Belaire-West notice could pertain, despite Defendants raising that issue over a year ago. Defendants did not promptly respond to Plaintiff and once they did, took the position that discovery need not be complied with because the class definition was overbroad, despite never having challenged the class definition and instead simply answering the complaint. Neither party attempted to contact the Court for an informal discovery conference, instead forcing the Court to take up time in its motion calendar to address what is, in essence, a routine issue.

CONCLUSION

For the foregoing reasons, the motion is GRANTED as discussed above. No sanctions are awarded. Plaintiff to give notice.